

SENATE No. 347

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the protection of medical exemptions for immunizations for school attendance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/19/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/21/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>4/7/2025</i>

SENATE No. 347

By Mr. Durant, a petition (accompanied by bill, Senate, No. 347) of Peter J. Durant for legislation relative to the protection of medical exemptions for immunizations for school attendance. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the protection of medical exemptions for immunizations for school attendance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 15 of chapter 76 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by deleting the second paragraph and inserting in place
3 thereof the following paragraph:

4 “A child shall be admitted to school upon certification (a “Medical Certification”) by a
5 physician that he or she has personally examined such child and that in his or her opinion the
6 totality of the child’s medical circumstances is such that the child’s health would be endangered
7 by such vaccination or by any of such immunizations. Such opinion may be based upon such
8 factors as are deemed relevant by the physician in his or her independent medical judgment
9 including, among other factors, concerns regarding an increased risk of adverse events, family
10 history, or exacerbation of pre-existing medical conditions relating to the child. The Medical
11 Certification shall be submitted at the beginning of each school year to the physician in charge of
12 the school health program. Medical Certifications shall be confidential, shall not be disclosed to

13 any person outside of the school health program, and shall not be admissible as evidence in any
14 action of any kind before any court, tribunal or agency without express, written consent of the
15 child's parent or guardian. In the absence of manifest bad faith, a physician who provides a
16 Medical Certification shall not be subject to disciplinary action by any governing or licensing
17 authority. Medical Certifications may not be used to change or negatively affect a physician's
18 rating or standing with an employer, insurer, hospital affiliation or academic affiliation."